

LAW & MOTION CALENDAR
TENTATIVE RULINGS

July 31, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1		
2	Dunn vs. Suzuki Motor USA, LLC 2025-01477567	Plaintiff’s Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to September 11, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 1, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Please provide a copy of Plaintiff’s separate individual settlement for the Court’s review. All agreements between the parties figure into the Court’s fairness analysis. 2. Please provide 60 days, rather than 45, for opt-outs, objections, and workweek disputes. 3. Was an expert retained to assist in valuing the case? If so, please provide a CV.

		4. The definition of “Released Parties” identifies Suzuki Motor of America, Inc. by name. Does this entity face liability in its own right, or would its liability be solely derivative of Defendant’s? 5. The released class and PAGA claims expressly include claims based on failure to pay sick pay. Please provide a valuation for sick pay claims. The Court will not permit the release of known claims unless they are valued. 6. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 7. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 8. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout. As to the Notice: 1. On page 2 of the notice, please delete the description of the mediator as “experienced, neutral”. Because the notice is Court-ordered, there is a risk this description could be considered an official endorsement by the Court. 2. Does notice need to be given in any languages other than English? 3. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 4. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
3	Ortiz vs. West Coast University, Inc., a California corporation 2024-01433416	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the prior minute order. The motion for approval of the parties’ PAGA settlement is GRANTED. The Court finds the parties’ settlement is “fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 72.) The Court approves the following distributions: 1. Attorneys’ fees in the amount of \$150,000, or 30% of the GSA. The Court finds this amount to be a reasonable result